

Court No. - 39

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Hon'ble Dilip Gupta,J.

Hon'ble Vinod Kumar Misra,J.

As prayed for by the learned counsel for the petitioner, place this petition on 26 March 2015, as fresh.

Order Date :- 24.3.2015

AS

(Vinod Kumar Misra, J)

(Dilip Gupta, J)

Court No. - 39

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Hon'ble Dilip Gupta,J.

Hon'ble Vinod Kumar Misra,J.

As prayed for by the learned counsel for the petitioner, place this petition as fresh, on 1 April 2015.

Order Date :- 30.3.2015

AS

(Vinod Kumar Misra, J)

(Dilip Gupta, J)

Court No. - 39

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Hon'ble Dilip Gupta,J.

Hon'ble Vinod Kumar Misra,J.

The petitioner seeks the quashing of the order dated 26 November 2013 passed by the Electricity Consumer Grievance Redressal Forum.

Supplementary affidavit filed today be kept on record.

It is submitted by learned counsel for the petitioner that the Forum failed to appreciate that the petitioner was having a load of 24 KW under LMV-6 and the bill that was to be issued would be as per KVAH and not KWH and that the bill for arrears which had been issued to the private respondent No.2 was because of this difference.

The matter requires consideration.

Issue notice to respondent No.2 by registered post. Steps may be taken within a week. The respondents may file a counter affidavit within four weeks. Rejoinder affidavit, if any, may be filed within two weeks thereafter.

List this petition for admission/hearing in the week commencing 11 May 2015.

Till the next date of listing, the operation of the order dated 26 November 2013 passed by the Forum shall remain stayed.

Order Date :- 6.4.2015

NSC

(Dilip Gupta, J.)

(Vinod Kumar Misra, J.)

Court No. - 39

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Dilip Gupta, J.

Hon'ble Vinod Kumar Misra, J.

It is stated by learned counsel for the petitioner that the counter affidavit has not been served till date. Office has also not submitted any report about service of notice on respondent No. 2.

Office shall submit a report. Respondents may file counter affidavit within three weeks.

List this Petition in the 2nd Week of July, 2015.

Interim order dated 6 April, 2015 shall continue till the next date of listing.

Order Date :- 11.5.2015

AS

(Vinod Kumar Misra, J)

(Dilip Gupta, J)

Court No. - 36

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Rajes Kumar, J.

Hon'ble Shamsher Bahadur Singh, J.

As prayed by learned counsel for the petitioner, four weeks' time is allowed to file rejoinder affidavit.

List in the week commencing 10th August, 2015.

Office is directed to place the counter affidavit on record.

Interim order, if any, shall continue till next date of listing.

Order Date :- 10.7.2015

A.Kr.*

Court No. - 32

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Rakesh Tiwari, J.

Hon'ble Mukhtar Ahmad, J.

As prayed, list this matter after two weeks.

Till then, interim order shall continue.

Order Date :- 10.8.2015

Shahid

Court No. - 32

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Rakesh Tiwari, J.

Hon'ble Mukhtar Ahmad, J.

As prayed, list this matter after two weeks.

Till then, interim order granted earlier will remain in operation.

Order Date :- 25.8.2015

Shahid

Court No. - 32

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Rakesh Tiwari, J.

Hon'ble Mukhtar Ahmad, J.

As prayed, list this matter after two weeks.

In the meantime, interim order granted earlier will continue till the next date of listing.

Order Date :- 9.9.2015

Shahid

Court No. - 32

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Rakesh Tiwari, J.

Hon'ble Mahesh Chandra Tripathi, J.

Ms. Usha Kiran, learned counsel for the petitioner prays for and is granted three weeks and no more time to file rejoinder affidavit.

List immediately thereafter. Till then, interim order granted earlier will remain in operation.

Order Date :- 28.9.2015

Jaswant

Court No. - 39

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Dilip Gupta, J.

Hon'ble Mukhtar Ahmad, J.

List this petition in the week commencing 23 November 2015. Interim order, granted earlier, shall continue till the next date of listing.

Order Date :- 26.10.2015

GS

(Dilip Gupta, J.)

(Mukhtar Ahmad, J.)

Court No. - 39

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Dilip Gupta, J.

Hon'ble Mukhtar Ahmad, J.

List in the first week of January 2016.

Interim order, granted earlier, shall continue till the next date of listing.

Order Date :- 23.11.2015

Akram

(Dilip Gupta, J.)

(Mukhtar Ahmad, J.)

Court No. - 39

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Dilip Gupta, J.

Hon'ble Mukhtar Ahmad, J.

List in 3rd week of February 2016.

Interim order, granted earlier, shall continue till the next date of listing.

Order Date :- 4.1.2016

sherly

(Mukhtar Ahmad, J.) (Dilip Gupta, J.)

Court No. - 39

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Dilip Gupta, J.

Hon'ble Mukhtar Ahmad, J.

List in the third week of March 2016. Interim order, granted earlier, shall continue till the next date of listing.

Order Date :- 16.2.2016

Akram

(Dilip Gupta, J.)

(Mukhtar Ahmad, J.)

Court No. - 21

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance
& Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble V.K. Shukla, J.

Hon'ble Mahesh Chandra Tripathi, J.

List after three weeks.

Interim order, if any, is extended till the next date of listing.

Order Date :- 20.8.2016

Shekhar

Court No. - 21

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble V.K. Shukla, J.

Hon'ble Mahesh Chandra Tripathi, J.

List this matter after four weeks.

Interim order, already granted by this Court, stands extended till the next date of listing.

Order Date :- 12.9.2016

pks

Court No. - 21

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble V.K. Shukla, J.

Hon'ble Mahesh Chandra Tripathi, J.

List this matter after four weeks.

Interim order, already granted by this Court, stands extended till the next date of listing.

Order Date :- 18.10.2016

pks

Court No. - 21

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble V.K. Shukla, J.

Hon'ble Daya Shankar Tripathi, J.

List after four weeks.

Interim order granted earlier is extended till the next date of listing.

Order Date :- 23.11.2016

L.F./8

Court No. - 21

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble V.K. Shukla, J.

Hon'ble Mahesh Chandra Tripathi, J.

List this writ petition after four weeks.

Interim order, already granted by this Court, stands extended till the next date of listing.

Order Date :- 22.12.2016

pks

Court No. - 21

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble V.K. Shukla, J.

Hon'ble Mrs. Sangeeta Chandra, J.

List after four weeks.

Interim order already granted is extended till the next date of listing.

Order Date :- 3.2.2017

Sazia

Court No. - 21

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble V.K. Shukla, J.

Hon'ble Ashok Kumar, J.

List after four weeks.

The interim order granted earlier to continue till the next date of listing.

Order Date :- 7.3.2017

SK Srivastava

Court No. - 39

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural
Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer
Grievance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Dilip Gupta, J.

Hon'ble Prabhat Chandra Tripathi, J.

List on 1 May 2017.

Interim order, granted earlier, shall continue till the next
date of listing.

Order Date :- 12.4.2017

Atmesh

(Dilip Gupta, J.)

(Prabhat Chandra Tripathi, J.)

Court No. - 39

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural
Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer
Grievance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Dilip Gupta, J.

Hon'ble Prabhat Chandra Tripathi, J.

Learned counsel for the petitioner states that Respondent
No.2 has died in the meantime.

As prayed, list the petition on 18 May 2017.

Interim order shall continue till the next date of listing.

Order Date :- 1.5.2017

MT**

(Dilip Gupta, J.)

(Prabhat Chandra Tripathi, J.)

Court No. - 34

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Sudhir Agarwal, J.

Hon'ble Umesh Chandra Tripathi, J.

1. After some argument, counsel for petitioner prays that matter may be taken up tomorrow.

2. As prayed, put up tomorrow i.e. 27.10.2017.

Order Date :- 26.10.2017

Sharad/-

Court No. - 34

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Sudhir Agarwal, J.

Hon'ble Vivek Kumar Singh, J.

As prayed, list on 8.11.2017.

Order Date :- 27.10.2017

AK Pandey

Court No. - 34

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

As prayed, put up tomorrow.

Order Date :- 8.11.2017

AK

Court No. - 34

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

Put up on 14.11.2017.

Order Date :- 9.11.2017

Shubham

Court No. - 34

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

1. Heard.

2. Delay in filing substitution application is explained satisfactorily. It is hereby condoned. The application is, accordingly, allowed.

Order Date :- 14.11.2017

Shubham (Appl. No. 361859 of 2017)

Court No. - 34

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Divn.

Respondent :- Chairman & Judicial Member, Consumer Greivance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

1. Heard.

2. Allowed.

3. Let substitution be carried out during course of the day.

4. As prayed by learned counsel for petitioner, put up tomorrow.

5. Sri Bidhan Chandra Rai, Advocate, has filed Vakalatnama on behalf of newly substituted respondents.

Order Date :- 14.11.2017

Shubham (Appl. No. 361860 of 2015)

Court No. - 34

Case :- WRIT - C No. - 15180 of 2015

Petitioner :- Executive Engineer, Electricity Rural Distribution Division.

Respondent :- Chairman & Judicial Member, Consumer Grievance & Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Bidhan Chandra Rai

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

1. Executive Engineer, Electricity Rural Distribution Division Ist, Mathura Cantt, District Mathura has filed this writ petition under Article 226 of Constitution of India praying for a writ of certiorari for quashing order dated 26.11.2013 passed by Electricity Consumer Grievance Redressal Forum, Agra Region, Agra (hereinafter referred to as 'ECGRF') whereby it has accepted claim of Banwari Lal (Consumer) and cancelled bill dated 20.9.2012 amounting to Rs.4,58,152/-. It has further directed petitioner to correct bill with effect from 16.6.2012 on the basis of 'kVAh' reading and adjust the amount already paid by Consumer. It has also awarded damages of Rs.3000/- and cost of Rs.500/- to Consumer.

2. Facts in brief, giving rise to present dispute, are that Consumer Banwari Lal (now deceased and substituted by legal heirs), had an electric connection, SC No.3810/034682, with contracted load 31 HP/24 KW. For the billing purpose, it is also not in dispute between parties that Tariff Rate Schedule (hereinafter referred to as the 'Tariff') LMV-6 is applicable to consumer-respondent no.2. Bill dated 22.6.2012 was issued on the basis of 'kWh' reading. It was paid by Consumer. Next bill dated 18.7.2012 was issued on the basis of 'No Reading' (hereinafter referred to as the 'NR'). Same was also paid by Consumer. No electricity bill was served upon Consumer for the

month August 2012. In September 2012, a bill dated 20.9.2012 was served which was again on the basis of NR. In the said bill, in place of kVA, kVAh reading was shown as 206626 kVAh and an arrear of Rs.4,58,152/- was also shown. Entire bill was for Rs.4,76,415/-. Obviously, since last bill dated 18.7.2012 was already paid, there could not have been any occasion of arrears, thus, Consumer made a complaint against aforesaid bill. Consumer was assured that bill would be corrected. He was directed to deposit Rs.35,000/- on the basis of last bill, which was deposited by Consumer, vide receipt no.527785/40 dated 28.9.2012. Next bill dated 17.12.2012 was issued by Petitioner for consumption period 15.10.2012 to 15.11.2012 on the basis of kVAh reading and therein previous reading 209804 and current reading 210457 were shown. Earlier arrear of Rs.4,76,415/- was maintained. When Consumer again made complaint, he was advised to deposit Rs.50,000/-, which he deposited, vide receipt no. 540093/04 dated 30.11.2012. Despite repeated request, bill was not corrected and electricity connection of Consumer was disconnected on 27.12.2012.

3. A written complaint was again made by Consumer-respondent no.2 on 28.12.2012 but no action was taken by Petitioner or subordinate officers whereafter Consumer made a complaint to Superintendent Engineer on 21.1.2013. Thereupon also, no action was taken. Under these circumstances, Consumer made complaint before ECGRF and also deposited a further sum of Rs.45,000/-, vide bank draft dated 27.2.2013.

4. Complaint made before ECGRF was contested by Petitioner by filing reply stating that Consumer was in the category of LMV-6 and since contracted load was more than 25 BHP (18 KW), hence, his billing has to be made as per kVAh reading and not kWh reading. However, due to omission/mistake, billing continued on the basis of

kWh reading causing a difference in reading of 125780 units between kWh and kVAh for which electricity charge comes to Rs.4,58,152/-, which consumer is liable to pay. Deposit of Rs.35,000/- on 28.9.2012 and Rs.50,000/- on 30.11.2012 was admitted by Petitioner. During pendency of complaint, payment of Rs.45,000/- by bank draft on 25.3.2013 was also admitted.

5. ECGRF found that billing has to be made as per relevant Tariff Order and not Electricity Supply Code. As per Tariff Order 2009-10, electricity bill for 25 kW or more had to be issued on the basis of 'kVAh' reading. Under Tariff Order 2012-13, which is applicable from October-November, 2012, billing was to be made in kVAh for Consumer having contracted load of 10 kW or more. Since consumer comes under the category of bill to be prepared on the basis of kVAh reading from October-November 2012 only under Tariff Order 2012-13, earlier bills of 2008 and onwards could not have been revised on the basis of kVAh reading and, therefore, demand raised by Petitioner was illegal.

6. Question for consideration before us is “whether electricity bills ought to have been issued to Consumer as per kVAh reading or kWh reading and from which date?”

7. Section 45 of Electricity Act 2003 (in short 'Act, 2003') provides that a Distribution Licensee for supply of electricity can charge price in accordance with such Tariffs, fixed from time to time and conditions of his licence. Section 45 of Act 2003 further provides that charges for electricity supply by a Distribution Licensee shall be fixed in accordance with methods and principles, as may be specified by State Commission. Section 45 is reproduced as under:-

“45. Power to recover charges.- (1) Subject to the provisions of this section, the prices to be charged by a distribution licensee

for the supply of electricity by him in pursuance of section 43 shall be in accordance with such tariffs fixed from time to time and conditions of his licence.

(2) The charges for electricity supplied by a distribution licensee shall be--

(a) fixed in accordance with the methods and the principles as may be specified by the concerned State Commission;

(b) published in such manner so as to give adequate publicity for such charges and prices.

(3) The charges for electricity supplied by a distribution licensee may include--

(a) a fixed charge in addition to the charge for the actual electricity supplied;

(b) a rent or other charges in respect of any electric meter or electrical plant Provided by the distribution licensee.

(4) Subject to the provisions of section 62, in fixing charges under this section a distribution licensee shall not show undue preference to any person or class of persons or discrimination against any person or class of persons.

(5) The charges fixed by the distribution licensee shall be in accordance with the provisions of this Act and the regulations made in this behalf by the concerned State Commission."

(Emphasis added)

8. Electricity Supply Code, 2005 (in short 'Code 2005) contains terms and conditions of supply and other relevant provisions as provided under Section 50 of Act, 2003, which reads as under:-

"50. The Electricity Supply Code.- The State Commission shall specify an electricity supply code to provide for recovery of electricity charges, intervals for billing of electricity charges, disconnection of supply of electricity for non-payment thereof, restoration of supply of electricity, measures for preventing tampering, distress or damage to electrical plant or electrical line or meter, entry of distribution licensee or any person acting on his behalf for disconnecting supply and removing the meter, entry for replacing, altering or maintaining electric lines or

electrical plants or meter and such other matters.”

(Emphasis added)

9. It may be noted at this stage that Section 50, as noticed above, was substituted by Act No. 26 of 2007 which came into force on 15.6.2007. It may also be noted that Code, 2005 with which we are concerned was amended in the light of amendment made by Act 2007 by Electricity Supply Code (Fourth Amendment), 2007 and on this aspect, learned counsel for the parties have no dispute.

10. Clause 2.2 of Electricity Supply Code, 2005 contains definitions of certain Terms. We are concerned with the definition of 'Billing Cycle' or 'Billing Period', 'Connected Load', 'Contracted Load', 'Demand Charge', 'Energy Charge', 'Fixed Charges', 'Meter', 'Minimum Charge', 'Tariff Order' and 'Tariff Schedule', which are defined in clauses 2.2 (i), (o), (s), (u), (z), (dd), (mm), (nn), (yy) and (zz) and same are reproduced as under:-

*“(i) “Billing Cycle or Billing Period” means the **period for which electricity bills shall be prepared** for different categories of consumers by the licensee.*

(o) “Connected Load” means aggregate of the manufacturer's rating of all energy, consuming devices, in the consumer's premises, which, be simultaneously used. In case manufacturer-rating plate is not available, the Licensee shall measure actual load of the device. This shall be expressed in KW, KVA or BHP units and shall be determined as per the procedure laid down by the Commission (Annexure 4.6).

*(s) “Contracted Load” means **maximum electrical load in KW, KVA or BHP** agreed to be supplied by the licensee which may be different than connected load and reflected in the agreement between the parties. It shall be rounded off to next higher number. Wherever the word 'sanctioned load' is used, it shall mean contracted load or vice versa.*

(u) “Demand Charge” for a billing period means a charge levied on the consumer based on the [Maximum demand] (Refer clause 2.2 (II)), or as per the Tariff Order of the Commission.

(z) “Energy charge” refers to a charge levied on the consumer for each unit of electricity supplied as per tariff order of the Commission.

(dd) “Fixed Charges” shall be as per the provisions of the Tariff order.

(mm) “Meter” means an equipment used for measuring electrical quantities like energy in Kwh, and or KVAh maximum demand in KW and or KVA, reactive energy in KVAR hours etc. including accessories like Current Transformers (CT) and Potential Transformers (PT) where used in conjunction with such meter and any enclosure used for housing or fixing such meter or its accessories and any devices like switches or MCB or fuses used for protection and testing purposes. It will include any seal or sealing arrangement provided by the Licensee for avoiding unauthorised use of Electricity. This shall also include prepayment meters.

(nn) “Minimum Charge” shall be as per the provisions of the tariff order.

(yy) “Tariff Order” in respect of a licensee means **order issued by the Commission for that Licensee means order issued by the Commission for that licensee indicating the rates to be charged by the Licensee from various categories of consumers for the supply of electrical energy and services.**

(zz) “Tariff Schedule” is the most recent schedule of charges for supply of electricity and services issued by the Licensee as per the provisions of the Tariff Order for that Licensee.”

(Emphasis added)

11. Under Chapter 3, system of supply and classification of Consumers has been provided. System of supply is of three types, i.e., Low Tension (LT), High Tension (HT) and Extra High Tension (EHT). For our purpose, suffice it to mention that a Consumer having contracted load upto 50KW/56 KVA is to be classified under 'Low Tension supply of Electricity'. It has been defined in clause 3.1 (b)(1) which reads as under:-

“(1) Low Tension (LT)- Single Phase: 230 volts between phases and neutral. Three Phase: 400 volts between phases.”

12. Classification of 'Consumers' is clause 3.7 of Code, 2005.

“3.7 Classification of Consumers

The Licensee may classify or reclassify consumers into various categories from time to time and may fix different tariffs for different categories of consumers with the approval of the Commission. The existing classification is given in Annexure 3.1.”

13. Annexure 3.1 contains list of existing categories of 'Consumers' and 'billing cycle' reads as under:-

“Existing Consumer Categories and Billing Cycle

- LMV-1 - Domestic Light, Fan and Power-one month or two months as per the resources of Licensee.*
- LMV-2 – Non-Domestic Light, Fan & Power-One month or two months as per the resources of the Licensee*
- LMV-3 – Public Lamps-Monthly*
- LMV-4- Public Institutions- Monthly*
- LMV-4 (A)-Light, Fan & Power for Public Institutions-Monthly,*
- LMV-4(B)–Light, Fan & Power for Private Institutions-Monthly*
- LMV-5 – Small Power for Private Tube Wells/Pumping Sets for Irrigation Purposes-Six Monthly/ Bi-monthly or Monthly*
- LMV-6- Small and Medium Power- Monthly***
- LMV-7- Public Water Works- Monthly*
- LMV-8- State Tube Wells, World Bank Tube Wells & Pumped Canal-Monthly*
- LMV-9- Temporary Supply-Monthly (where metered supply has been provided).*
- LMV-10- Departmental Employees- Monthly*
- HV-2 Large and Heavy Power-Monthly*
- HV-3 – Railways- Monthly*
- HV-4 – Lift Irrigation Works- Monthly”*

(Emphasis added)

14. Clause 3.8 contemplates 'Tariff' and 'Other Charges' for supply which reads as under:-

“3.8 Tariff and other Charges for Supply

(a) Tariff and other charges for the supply of electricity shall be announced by the Licensee with the approval of the Commission in accordance with Section 24 of the UP Electricity Reforms Act, 1999 to the extent consistent with provisions of the Electricity Act, 2003. Such tariffs or charges shall take effect only after seven days from the date of publication in at least two daily newspapers having wide circulation in the area of supply. The charges may include:

- (i) Minimum monthly charges / fixed charges / yearly charges.*
- (ii) Demand charges.*
- (iii) Energy charges for energy supplied or wheeled.*
- (iv) Seasonal and time of day charges*
- (v) Synchronization charges.*
- (vi) Protective load charges*
- (vii) Cross-subsidy surcharges for open access*
- (viii) Compensation for system losses*
- (ix) Additional surcharge in cases where a consumer takes supply from an authorized person / agency other than distribution Licensee of his area*
- (b) The Licensee may also realize other charges including, but not restricted to, connection charges, re-connection charges, delayed payment surcharge, fuel surcharge, power purchase surcharge, grid support charges and power factor penalty / incentive, with the prior approval of the Commission.*
- (c) After Commission’s approval, the Licensee shall publish Tariff Schedule on its web site immediately and make available copies to consumers at a reasonable price.***

(Emphasis added)

15. Clause 3.9 of Code, 2005 deals with statutory levies, which is not relevant for present dispute.

16. Change of category of 'Consumer' has been dealt with in clause 4.40, which reads as under:-

4.40 Change of category

- (i) “Category of Consumer” means the Tariff Schedule under which a consumer is billed as per latest applicable Tariff*

Order of the Commission.

The applicant shall apply for change of category from one tariff rate schedule to another on the format prescribed at Annexe 4.13.

(ii) In case sanction of new category is not permitted under any law in force, the Licensee shall inform the consumer within 15 days from the date of acceptance of application.

(iii) The Licensee shall inspect the premises to verify and shall change the category within 10 working days from the date of acceptance of application.

(iv) Change of category shall be effective from next billing cycle.

(v) No case of unauthorized use of energy shall be booked by the Licensee if detected after the consumer had applied for change of category and change is legally permissible.

(vi) The application of the consumer shall be treated as fresh application and accordingly he will deposit processing fees, new additional security, if any, and execute supplementary agreement wherever necessary. (Emphasis added)

17. Clause 5.1 places an obligation upon Distribution Licensee to give supply of electricity to a Consumer by installing a correct meter in accordance with Regulations to be made by Central Electricity Authority under Act 2003. Provisions for billing is contained in Chapter 6. Billing has to be made as per reading obtained from meter installed at Consumer's premises. If meter reading is not available for certain period, a provisional bill may be issued on the basis of average consumption of previous three billing cycles, as provided in clause 6.2 (1) of Code 2005. If there is dispute with regard to bills and arrears, provision for redressal of such dispute is provided under clause 6.5.

18. Clause 7.10 contemplates setting up of Consumer Grievance Redressal Forum and Ombudsman pursuant whereto U.P. ERC (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007 (in short 'Regulations 2007') have been framed. ECGRF has passed order on a complaint under provisions of said Regulations.

19. We do not find any provision in the Code-2005 that billing of Consumer for charging price of electricity supply to it by Distribution Licensee has to be made in the manner provided in Code 2005. In fact it has to be governed by rules and terms and conditions provided in Tariff Order and relevant Tariff Schedule.

20. Tariff order revising rates with effect from 27.4.2008 approved by U.P. Electricity Regulatory Commissioner (*hereinafter referred to as "Commission"*), vide order dated 1.5.2008, copy of which has been annexed as Annexure No.1 to supplementary affidavit, provides in paragraph 5 as under :-

"5. kVAh tariff

kVAh based tariffs shall be applicable on all consumers having contracted load of 25 kW & above for Light, Fan & Power and 25 BHP & above for Motive Power Loads, under different categories with static TVM/TOD meters installed (as appropriate).

The rates prescribed in different categories in terms of kW and kWh will be converted into appropriate kVA and kVAh by multiplying Fixed/demand Charges, Energy Charges and Minimum Charges by a factor of 0.90 i.e. desired average power factor. Similarly, the Fixed/ Demand charges and Minimum Charges expressed in BHP can be converted into respective kVA rates in accordance with formula given below:

Demand Charges in kVA =(Fixed/Demand Charges in BHP* 0.90/0.746" (emphasis added)

21. The above provision shows that kVAh tariff was for consumers having contracted load of 25 kW and above for Light, Fan and Power and 25 BHP & above for Motive Power Loads under different categories with static TVM/TOD meters installed. It is not case of petitioner that consumer-respondent no. 2 was having electric connection in the category of Motive Power Loads and since, admittedly, contracted load of respondent no.2 was 24 kW for Light,

Fan and Power, kVAh tariff was not applicable to respondent no. 2 in the case in hand.

22. The next tariff revision is vide Commission's order dated 31st March 2010, with effect from 15th April 2010. In general provisions of tariff, kVAH Tariff in para 5 is similarly worded as it was in Rate Schedule of 2008, as quoted above. Hence, here also kVAh tariff condition was not applicable to consumer-respondent no. 2.

23. Commission, vide order dated 19.10.2012, revised tariff with effect from 01.10.2012. For the first time, kVAh tariff was extended to consumers having contracted load of 10 kW and above and para 5 of aforesaid schedule reads as under:-

“5. KVAH TARIFF:

'kVAh based tariffs' shall be applicable on all consumers having contracted load of 10kW & above for Light, Fan & Power and 13.4 BHP & above for Motive Power Loads, under different categories with static TVM/TOD meters installed (as appropriate).

The rates prescribed in different categories in terms of kW and kWh will be converted into appropriate kVA and kVAh by multiplying Fixed/Demand Charges and Energy Charges by an average power factor of 0.90. Similarly, the Fixed/Demand Charges expressed in BHP can be converted into respective kVA rates in accordance with formula given below:

Demand Charges in kVA=(Demand Charges in BHP 0.90)/0.746”* (emphasis added)

24. Thus, with effect from 01.10.2012, kVAh tariff became applicable to respondent no.2. There appears to be a dispute about date of enforcement of aforesaid revised tariff of 2012. Vide circular dated 19.05.2014, with reference to this Court's judgement dated 01.04.2014 passed in Civil Misc. Writ Petitions No.13514 of 2014, 17090 of 2014 and 15122 of 2014, it was provided by respondent -Uttar Pradesh Power Corporation Ltd (*hereinafter referred to as*

“UPPCL”) that tariff LMV-6 shall be made effective from 01.11.2012 instead of 01.10.2012. It was also stated that after enforcement of aforesaid tariff, when first meter reading shall be taken on that date, consumption shall be proportionately distributed as per old and new tariff.

25. Further revisions of Tariff are by Commission's order dated 31.5.2013 with effect from 10.6.2013; dated 01.10.2014 with effect from 12.10.2014; dated 18.6.2015 with effect from 28.6.2015; and dated 01.8.2016 with effect from 10.8.2016. In all these tariffs, kVAh billing condition as was made effective by Rate Schedule of 2012 with effect from 01.11.2012 is continuing. It is, in these circumstances, petitioner clearly erred in law and committed manifest error and illegality issued bill dated 20.9.2012 as per kVAh reading with effect from 2008 ignoring the fact that kVAh reading was applicable, till that date, in respect of consumers, who have contracted load of 25 kW for Light, Fan and Power connection and condition of 25 BHP and above was applicable to consumers having Motive Power Loads. Aforesaid requirement was modified for the first time by tariff order dated 19.10.2012 in respect of LMV-6 category consumers, which came into force on 1.11.2012. Here, required load was reduced to 10 kW and above for Light, Fan and Power and 13.4 BHP and above for Motive Power Loads. ECGRF, therefore, has rightly held that bills issued before 01.11.2012, on the basis of kVAh reading, were not correct. In fact, when relevant Tariff Orders were confronted to learned counsel for petitioner, she could not dispute that under aforesaid Tariff Orders, consumer-respondent no.2 billing could have been made as per kVAh reading on and after 01.11.2012e. Before that, 25 kW and above load consumers of Light, Fan and Power could have been billed as per kVAh and not otherwise. It is/was also not the case of petitioner at any point of time that consumer, in case in hand, has

electric connection covered by category of Motive Power Load and, therefore, the second clause of 25 BHP and above was inapplicable to respondent 2.

26. In view of above discussion, we find no manifest error in order of ECGRF assailed by petitioner.

27. Writ petition lacks merit. Dismissed with cost which we quantify to Rs.25,000/-

Order Date :- 15.11.2017

Ram Murti